

Contracts
Walker v. Keith
382 S.W.2d 198 (1964)

Keyword Subject

Indefiniteness, Rent

Facts

Plaintiff (Keith) was a lessee, renting a property from defendant (Walker) for \$100 per month. The contract was formed with a renewal option that stated that the new rental price will be agreed upon by both parties and will be based on "comparative business conditions" between the time that the last price was reached and the new renewal period. When the renewal period came about, the parties were not able to reach an agreement and litigation ensued.

Procedural History

Trial Court: In favor of the Plaintiff (New rent set at \$125)

Appeal: In favor of Defendant (Reversed)

Issue

If a contract does not enclose the price or a method by which the price can be determined then can it be determined by the court?

Holding: No; Reversed

Principle

In the case of indefiniteness on price of a contract, the contract is unenforceable.

Reasoning

Separate Opinions

Notes